

**SYNTHETIC APPELLATE JUDGMENT — FICTIONAL CASE — NOT
AN ACTUAL JUDGMENT**

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

No. SYN-CA4-26-CV-4103 Judgment Entered June 18, 2026

In accordance with the opinion filed this date, the Court exercises interlocutory jurisdiction under 28 U.S.C. § 1292(a)(1), denies the City of Norvale's request to dismiss the recurring-events controversy as moot, and affirms the district court's determination that the Piedmont Booksellers Guild established entitlement to preliminary protection on the present record.

The matter is remanded in part for the limited purpose of entering a superseding preliminary-injunction order that states the restrained acts with the specificity required by Federal Rule of Civil Procedure 65(d) and makes an express, record-supported determination under Rule 65(c) concerning security. The remand does not reopen the panel's affirmance of interim entitlement and does not direct a final merits judgment.

The existing January 23 protection remains effective during that limited corrective proceeding and until the superseding compliant order is entered. The City retains its neutral authority to address documented site, traffic, capacity, emergency, sanitation, reservation, and materially changed operational conditions throughout the remand.

The January 23 preliminary injunction remains effective until the district court enters a superseding compliant order. Neither the limited remand nor issuance of the mandate dissolves the existing protection by itself. The district court retains authority to manage proceedings consistent with the opinion and to respond to materially changed circumstances on an appropriate record.

The panel expresses no final view on permanent relief, damages, or the constitutionality of every application of the municipal ordinance. Those matters remain for the district court after the limited correction and further proceedings. The existing interlocutory record controls only the preliminary disposition stated here.

The parties shall preserve the existing permit record during that remand.

Each side shall bear its own appellate costs. This judgment is entered June 18, 2026, at the direction of the panel. The Clerk shall transmit notice to counsel and calculate post-judgment deadlines under the applicable appellate rules.